

BEFORE THE FEDERAL MARITIME COMMISSION

SAMSUNG ELECTRONICS AMERICA, INC.

Complainant,

v.

COSCO SHIPPING LINES CO., LTD.

Respondent.

Docket No. 24-16

DECLARATION OF KEN MURATA

I, KEN MURATA, hereby declare as follows:

1. I am above the age of 18 years old and competent to give this Declaration, which is based upon my personal knowledge of the facts stated herein. I make this declaration based on my personal knowledge and my review of company documents for Samsung Electronics America, Inc. ("SEA") related to this matter.

2. I am the General Counsel for SEA, the Complainant in the above-mentioned litigation. I am duly authorized to make this Declaration on SEA's behalf.

3. This Declaration is submitted in support of SEA's Memorandum Regarding the Protection of Inadvertently Produced Privileged Documents pursuant to the ALJ's June 5, 2026 Order on Document Production (Dkt. 121).

4. The documents SEA seeks to claw back in this action relate to the collection and analysis of demurrage and detention ("D&D") charges conducted under SEA's legal team's direction, including my oversight as General Counsel, in anticipation of litigation, with Samsung Electronics Co., Ltd. ("SEC") kept apprised of developments.

5. Beginning in late 2021, SEA began evaluating potential litigation against multiple ocean carriers in connection with significant amounts of D&D charges SEA was forced to pay in 2020 and 2021.

6. At that time, SEA determined it was necessary to collect information and data regarding the D&D charges paid by SEA to understand the scope of the D&D charges paid, the circumstances surrounding those charges, and the merits and potential value of prospective claims for their recovery (the “Internal Investigation”).

7. On or around January 11, 2022, under my direction and the direction of SEA’s legal team, SEA’s legal and business personnel began conducting the Internal Investigation. The Internal Investigation was not an audit conducted in the normal course of business but was instead commenced in anticipation of potential litigation.¹

8. In early February 2022, I and other SEA in-house counsel instructed the logistics, accounting, and other departments of SEA to gather ocean carrier data and develop analytical tools, including dedicated SAP² transaction codes, for D&D rate tables, a program to upload missing data, and a program to investigate charges in anticipation of litigation. These steps formed the foundation of the Internal Investigation referred to in communications as the “IEC 2021 Post-Audit,” also known as the Inbound Extra Charges 2021 Post-Audit. The personnel involved in the Internal Investigation were aware that their work was undertaken for litigation purposes, and that the resulting work product was created in anticipation of potential litigation.

¹ COSCO cannot dispute that they continue to have access to documents relating to audits in the normal course of SEA business – some contemporaneous with the Internal Investigation, which SEA did not claw back for the reason that they were not created in anticipation of litigation.

² SAP transaction codes (a “t-code”) is a shortcut to direct access to specific programs without navigating through multiple menus.

9. On February 15, 2022, SEA's legal personnel discussed with Holland & Knight LLP its assistance with the Internal Investigation, initial analysis of Internal Investigation information, and evaluating potential litigation against ocean carriers to recover D&D charges. One of those ocean carriers was COSCO. SEA ultimately engaged Holland & Knight LLP a few days later.

10. Throughout this period, SEA continued to develop processes to support the Internal Investigation at the direction of SEA and with updates to SEC. The documents generated in connection with these efforts, including data compilations, tables, system configurations, and internal communications, were created at the direction of SEA counsel and in anticipation of potential litigation.

11. By February 22, 2022, Internal Investigation preparations were complete and, from February 23 through March 24, 2022, SEA's accounting team collected financial data and mapped D&D invoice processes within SAP for the purpose of assessing the scope of the amounts SEA was forced to pay on these D&D charges. At all times, the personnel involved in this process understood that their tasks were conducted at the direction of SEA counsel and in anticipation of potential litigation.

12. On March 24, 2022, SEA's legal team member attended a meeting with various individuals involved in the Internal Investigation to discuss and evaluate the continued undertakings for the Internal Investigation.

13. On or around April 1, 2022, SEA's legal team, including the undersigned, together with Holland & Knight LLP, commenced coordinating and ultimately meeting with various individuals involved in the Internal Investigation regarding the D&D charges, for the purpose of further assessing legal claims against ocean carriers.

14. The collection and analysis activities for the Internal Investigation continued over the course of several months through early June 2022, with frequent follow-up emails, meetings, guidance, and discussions among SEA business personnel, internal legal team members, and Holland & Knight LLP.

15. SEA's counsel, under my oversight, maintained direct involvement in and closely guided SEA's accounting team and business personnel regarding the methods and processes used to collect and convey data for the analysis of D&D charges, with SEC kept informed and coordinated.

16. Because of the scope of the undertaking, not all of the communications among the people engaged in the Internal Investigation copied counsel on the day-to-day work of the Internal Investigation.

17. The data and documents gathered as part of the Internal Investigation were compiled into analyses for SEA counsel and Holland & Knight LLP to evaluate potential litigation against various ocean carriers, including COSCO.

18. In or around June 2022, I traveled with other members from SEA's legal team to meet with Holland & Knight LLP in SEA's offices in Plano, Texas, to review the information and analyses developed by the Internal Investigation and further evaluate the possibility of litigation against ocean carriers to recover D&D charges.

19. On September 23, 2022, SEA's Vice President, Logistics sent a Notice of Demand for Action Letter to COSCO. As General Counsel, I was copied on that Notice letter.

20. Based upon the information and analyses developed by the Internal Investigation, and the discussions held in Plano, Texas, SEA filed its first complaint against an ocean carrier at the Federal Maritime Commission on October 13, 2022 (Dkt. 22-30).

21. After more than a year of good faith negotiations with COSCO, the parties were unable to reach a resolution relating to D&D charges assessed by COSCO against SEA.

22. On March 22, 2024, SEA commenced this action against COSCO.

Pursuant to 28 U.S.C. § 1746(2), I declare under penalty of perjury under the law of the United States that the foregoing is true and correct.

Executed in Englewood Cliffs, New Jersey, on June 12, 2026.



Ken Murata

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